to the shame and disgrace annexed to imprisonment; partly to the solemn manner in which oaths are administered, and trials and executions conducted; and partly to the general sobriety of manners produced by the care which parents and ministers take to instruct the rising generation.[1]

I am indebted to Andrew Crosbie, Esq., for an account, from the clerk of the justiciary, of the executions from January 1768 to May 1782, from which it will appear, that in thirteen years and a half, there have been only fifty-four executed, and twenty-two pardoned.

In Scotland, executions formerly were not delayed after conviction or sentence; such delays being often equally injurious to the criminal and to society. Here, the punishment of the offender was made to appear the immediate consequence of his crime.

All criminals are tried out of irons; and when acquitted, they are immediately discharged in open court; and no gaoler has a fee from any criminal. Women are not put in irons in Scotland.

EDINBURGH. In the Tolbooth at Edinburgh, 6 July, 1779, there were thirteen debtors and nine felons; and in the Canongate Tolbooth, there were five debtors and one felon: and in the house of correction there were fifty-three women, crowded into three dirty and offensive rooms, where they work and sleep. 28 March, 1782, there were in the Tolbooth, four debtors and twenty-three criminals; in the Canongate, two debtors; and in the house of correction, thirty-seven women.

I will only just mention the close confinement of poor[2] criminals in the Tolbooth, the horrid cage in the room known by that name, and the severity practised there of chaining the condemned to an iron bar; because I found that the late Provost, Mr. Steuart, was using his best endeavours to get a new gaol

[1] It is provided by statute in the sixth session of King William's first Parliament, 1696, chap. xxvi, "That there be a school settled and established, and a schoolmaster appointed in every parish" in Scotland, and the presbytery has the superintendence of the execution of this Act, which has been carefully attended to. Many schools are also settled by donations and legacies, and by the Society for Propagating Christian Knowledge; so that no parish is without a school, and in some there are four or five. In the southern parts of Scotland, it is very rare that you meet with any person that cannot both read and write. It is scandalous for any person not to be possessed of a Bible, which is always read in the parochial schools.

[2] I say poor, because such as have money have too much liberty. For in the same prison, I lately saw some, who were confined for a riot, drinking whisky in the tap-room, in company with many profligate townsmen, who were readily admitted, as they promoted the sale of the gaoler's liquors.

built, which should be subject to better regulations and stand in a more airy situation.

The number of prisoners, September 1782.

	Debtors	Criminals
Edinburgh Tolbooth .	13	22
Edinburgh Canongate .	3	2
Dumfries. . . .	3	0
Perth	4	3
Aberdeen . . .	8	6
Inverness . . .	3	5

INVERNESS. The Tolbooth at Inverness has no fire-place, and is the most dirty and offensive prison that I have seen in Scotland. (The room for debtors is sixteen feet by fourteen and a half: that for felons about thirteen feet and a half square, and only six feet and a half high; the window is twenty inches by six.)

In one of the piers of the stone bridge at Inverness, there is a vaulted room intended for a prison. This room was constructed in 1684, when the bridge was built, but had not been opened for three years before my late visit. Near the wall of the bridge there is a trap-door twenty-two inches square, and a few steps down from it, an iron door (two feet three inches wide, and two feet and a half high), from which there is a descent of a few steps more to the room just mentioned, which is ten feet four inches by seven feet six, and six feet high. On the sides there are a stone seat, a small window, and two apertures to dip for water, etc.

SCOTLAND. The following defects may be remarked in the prisons in Scotland.

They have no courts belonging to them;[1] generally want water and sewers; are not clean; they are not visited by the magistrates; too little attention is paid to the separation of the sexes; the keepers are allowed licences for the sale of the most pernicious liquors, the consequence of which is, that the county allowance being paid in money to the prisoners, they generally spend it in whisky instead of bread.

"We do not think it possible, that a nation can attain to

[1] The original cause of this seems to have been the following very severe maxim in the Scotch law. "After a debtor is imprisoned, he ought not to be indulged the benefit of the air, not even under a guard; for creditors have an interest, that their debtors be kept under close confinement, that, by the *squalor carceris*, they may be brought to pay their debt."—Act Sess. 14. June 1671. *The Principles of the Law of Scotland*, 5th edit., p. 461.